



KIOWA TRIBE

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OFFICE OF THE LEGISLATURE

KIOWA TRIBE LEGISLATIVE ORDER KLO-CY-2025-028

SUBJECT: To Override A Veto Issued by the Chairman of a Resolution/Bill KL-CY-2025-014 2025 Moratorium on New Tribally Owned Corporations.

WHEREAS, Article VI, Section 6(c) and (d) of the Tribe's Constitution grants the Legislature the authority to override a Chairman's veto of a Bill or budget by passing a Legislative Order; and,

WHEREAS, On August 09, 2025, the Legislature passed a Bill entitled, "2025 Moratorium on New Tribally Owned Corporations." (Resolution KL-CY-2025-014); and,

WHEREAS, On August 20th, 2025, the Chairman of the Tribe vetoed Resolution KL-CY-2025-014 citing, "reasons for veto by Chairman (see attached statement)"; and,

NOW THEREFORE IT BE RESOLVED, that the Legislature hereby overrides the Chairman's veto of Resolution KL-CY-2025-014 2025 Moratorium on New Tribally Owned Corporations.

CERTIFICATION

The foregoing Legislative Override Order KLO-CY-2025-028 was duly voted and approved upon by the Legislature on September 13, 2025, at a Legislative Regular Session CI-(101) with a vote of (7) in favor and (0) opposed, (0) abstaining, and (0) absent, pursuant to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

Michael Primus
Speaker of the Legislature

LEGISLATIVE OVERRIDE ORDER - KLO-CY-2025-028

LEGISLATORS	YES	NO	ABSTAIN	ABSENT
Kyle Ataddlety District 1	X			
Michael Primus District 2	X			
Timothy Satepauhoodle District 3	X			
Cole DeLaune District 4	X			
Tiya Rosario District 5	X			
Ben Wolf District 6	X			
Warren Queton District 7	X			

KIOWA TRIBE RESOLUTION NUMBER KY-CY-2025-014

STATEMENT BY THE LEGISLATURE REGARDING VETO OVERRIDE

The Chairman contends that “the Legislature lacks authority to legislatively implement a moratorium on the economic development authority contained within the Executive Branch and Chairman’s authority...” The Chairman has it backwards. The Constitution provides that the “Chairman shall execute, administer, and enforce the laws” of the Kiowa Tribe. Art. VII Sec. 4(a). Additionally, the Constitution restricts the Chairman’s economic powers by limiting his authority to enter into contracts to those contract that have “previously authorized” by the Legislature. Art. VII Sec. 4(b)-(c). Put another way, the Chairman’s economic powers come from the laws adopted by the Legislature, not from some inherent Constitutional authority.

This resolution is an appropriate exercise of the Legislature’s authority to define the economic authority of the Chairman by temporary suspending the issuance of new Articles of Incorporation for the creation of new Tribally-Owned Corporations, which are only allowed by another piece of Legislation: the Kiowa Tribe Uniform Commercial Business Code of 2023. It is quite common for Legislatures to place moratoriums on the implementation of their own legislative acts, just as they are free to amend or repeal the same legislative acts. Simply put, the Legislature is acting pursuant to its Constitutional powers and is not an attempt to “grant unto itself extra-constitutional powers” or “amend the Constitution” as the Chairman alleges.

Looking to the practical matters raised by the veto, the Chairman only alleges that: (1) the legislation is based on speculation of wrongdoing; and (2) a fear that the legislation would create some sort of “chilling effect” on ongoing business development relations. Regarding the first issue, the Legislature made clear the concerns it was acting on in the text of the legislation and the debate leading up to the vote. Then, regarding the “chilling effect” concern, the Chairman provides no example of how the development of new business developments necessitates the creation of new Tribally-Owned Corporations, or how the lack of new Tribally-Owned Corporations would drive away any possible contractors with the Tribe.